

24VECV02595 24VECV02595

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-21

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Case Number: 24VECV02595 Hearing Date: July 21, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JOSE RAUL CONTRERAS MATA, an individual; and ALBERTO
CUAMATZI LUGARDO, an individual,

Plaintiffs,

vs.

ELIZA
MAE SERRA; and DOES 1-100, inclusive,

Defendants.

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CASE NO: 24VECV02595

[TENTATIVE]

RULING RE: DEFENDANT'S MOTION FOR AN ORDER COMPELLING PLAINTIFF JOSE RAUL
CONTRERAS MATA'S INDEPENDENT MEDICAL EXAMINATION

Dept. U

8:30

a.m.

July 21,

2026

I.

BACKGROUND

This case arises from a motor vehicle
accident that occurred on July 23, 2022.

On June 4, 2024, Plaintiffs Jose Raul
Contreras Mata ("Mata") and Alberto Cuamatzi Lugardo filed their complaint
against Defendant Eliza Mae Serra, alleging: (1) motor vehicle negligence; and
(2) general negligence.

On April 21, 2025, Defendant filed her answer
to the complaint.

On February 12, 2026, Defendant noticed Mata's independent medical examination ("IME"), with the IME set to take place on April 20, 2026. Before the IME, Plaintiffs' counsel notified defense counsel that Mata would require a Spanish interpreter. Defense counsel arranged for a Spanish interpreter to be present, but the interpreter did not show up for Mata's IME as scheduled. Defense counsel attempted to secure an alternative interpreter but was unable to do so on short notice. Thus, Mata's IME did not go forward. (Hsu decl., ¶¶ 3-8, Exhs. A, B.)

On April 21, 2026, counsel for both sides corresponded regarding Defendant's intent to reschedule Mata's IME. Plaintiff's counsel refused to reschedule the IME. (Hsu decl., ¶ 9, Exh. C.)

On April 23, 2026, Defendant filed her motion to compel Mata's IME.

As of 1:00 P.M. on July 15, 2026, Mata had filed no opposition brief.

II.

LEGAL STANDARD

"Any party may obtain discovery ... by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition ... of that party or other person is in controversy in the action." Code Civ. Proc., § 2032.020 (a).

III.

DISCUSSION

Defendant moves to compel Mata's IME. The motion is granted.

"Any party may obtain discovery ... by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in

any action in which the mental or physical condition ... of that party or other person is in controversy in the action."

Code Civ. Proc., § 2032.020 (a).

Here, Defendant already noticed Mata's IME, and Mata appeared on the noticed IME date.

However, apparently due to no fault of Defendant or defense counsel, a Spanish interpreter did not appear for the IME as scheduled. As such, Defendant was unable to perform Mata's IME. When Defendant requested that the IME be rescheduled, Plaintiffs' counsel refused.

The Court agrees with Defendant that if she is not allowed to schedule a second IME for Mata, her ability to defend against Plaintiffs' claims in this case will be unduly prejudiced. Especially given that the absence of a Spanish interpreter at the originally scheduled IME does not appear to be Defendant's fault, Plaintiffs' counsel will need to work with defense counsel to reschedule Mata's IME within a reasonable timeframe. Mata filed no opposition brief. The motion is granted.

As to Defendants' request that the IME occur at 1:30 p.m. on August 3, 2026, the Court declines to so specifically set the time and date. Again, Plaintiffs' counsel will need to work with defense counsel to reschedule Mata's IME within a reasonable timeframe. Given that this case is set for trial on November 16, 2026, the IME should occur no later than Friday, September 4, 2026, or on a later date mutually agreeable to both sides.

IV.

CONCLUSION

Defendant Eliza Mae

Serra's motion to compel Plaintiff Jose Raul Contreras Mata's independent medical exam is GRANTED.

Plaintiff Jose Raul Contreras Mata is ORDERED to submit for a rescheduled independent medical exam no later than Friday, September 4, 2026.

Defendant Eliza Mae

Serra is ORDERED to give notice.

DATED: July

21, 2026

Lee Arian

Judge of the Superior Court